

REFERENCE CARD

IDEA vs. Section 504: A Side-by-Side Comparison

Both IDEA and Section 504 protect students with disabilities. They are different laws with different protections. Understanding which applies to your child is foundational to effective advocacy.

Quick Comparison

	IDEA (IEP)	Section 504
What kind of law?	Federal special education law	Federal civil rights law (Rehabilitation Act)
What does it provide?	Specialized instruction AND related services	Accommodations and access only, no specialized instruction
Eligibility criteria?	13 specific disability categories plus must need specialized instruction	Broader definition. Any physical or mental impairment that limits a major life activity
The document?	Individualized Education Program (IEP)	504 Plan
Annual review required?	Yes. At least once every 12 months	No. Recommended but not federally required
Parental consent?	Required for evaluation and initial placement	Not required by federal law (varies by state)
Procedural protections?	Extensive. Prior Written Notice, mediation, due process	Limited. Fewer safeguards for parents
Paid by whom?	School district (some federal funding)	School district. No dedicated federal funding
Best for?	Students who need specialized instruction to access education	Students who can access grade-level curriculum with supports

Which One Does My Child Need?

The key question: does my child need different instruction, or just better access to the same instruction?

Consider IDEA (IEP) if...	Consider Section 504 if...
Your child needs to learn differently. Different methods, materials, or curriculum.	Your child can learn the same material as their peers with the right supports.
Your child needs related services: speech therapy, OT, PT, counseling.	Your child primarily needs time accommodations, physical access, or environmental changes.
Your child has significant academic gaps that peers do not have.	Your child's disability is managed (for example, ADHD with medication) and primarily needs check-ins and extended time.

Your child has already been found eligible for IDEA.

Your child was exited from IDEA but still needs supports.

Common Misconceptions

Misconception	Reality
A 504 is just a weaker IEP.	They serve different purposes. Neither is inherently better. It depends on the child's needs.
My child has a diagnosis, so they get an IEP automatically.	A diagnosis alone does not determine eligibility. The disability must also affect the child's education.
504 Plans have the same protections as an IEP.	IDEA has significantly stronger procedural protections for families.
The school chooses which one my child gets.	You are part of that decision. You can advocate for the level of support your child needs.

Remember: You can always request a move from a 504 to a full special education evaluation if you believe your child needs more support than accommodations alone can provide.

EDquity at the Margins | edquityatthemargins.org | info@edquityatthemargins.org | (786) 810-6178

EIN 42-2295582 | TN SOS Control # 002109529 | *This is not legal advice. Educational use only.*

Free family resource. Share with any family who needs it.